

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kayla Medwinter	Team: Squad #07	CCRB Case #: 202104951	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 07/02/2021 3:23 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/2/2023	Precinct: 120
Date/Time CV Reported Thu, 08/19/2021 3:44 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 08/19/2021 3:44 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. DT3 Rudy Anzalone	05617	945472	INT CIS
3. POF Cara Gambardella	01915	944340	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Francisco Allende	03957	944318	ESS 05
2. SGT Anthony Mcdonald	01901	925710	ESS 08
3. DTS Jorge Salazar	01253	923098	ESS 09
4. DTS Steven Orlando	04489	934649	ESS 09
5. DTS Shawn McLaughlin	07640	920589	ESS 05
6. DTS Louis Gerlach	04316	941806	ESS 10
7. DTS Theodore Peters	03058	946113	ESS 10
8. DTS Robert Sullivan	03096	951311	ESS 05
9. DTS Ralph Stallone	07793	920867	ESS 05
10. DT1 Kenneth Ayala	04727	905736	ESS 06
11. POM Casey Engelhardt	15088	955902	120 PCT
12. SGT Sean Dawson	01163	948856	PSA 1
13. PO Matthew Giacalone	06379	958625	INT CIS
14. POF Marina Fotey	18968	963997	120 PCT
15. POM Jimmy Ramirez	21196	931000	120 PCT
16. POM Vincent Reres	16994	957998	120 PCT
17. POM Philip Sarnicola	08451	963747	120 PCT
18. CPT Anthony Bentivegna	00000	878931	PBSI

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Rudy Anzalone	Abuse: Detective Rudy Anzalone entered § 87(2)(b) in Staten Island.	A . Exonerated
B . DT3 Rudy Anzalone	Abuse: Detective Rudy Anzalone searched § 87(2)(b) in Staten Island.	B . Exonerated
C . Officers	Force: Officers pointed their guns at § 87(2)(b)	C . Exonerated
D . POF Cara Gambardella	Abuse: Police Officer Cara Gambardella strip-searched § 87(2)(b)	D . Unfounded

Case Summary

On August 19, 2021, § 87(2)(b) made the following complaint via the CCRB Call Processing System.

On July 2, 2021, at approximately 3:23 a.m., § 87(2)(b) was in her bedroom at § 87(2)(b) when officers from the Emergency Services Squad, under the authority of a search warrant obtained by Det Rudy Anzalone entered and searched the apartment (**Allegation A: Abuse of Authority – Entry, Exonerated and Allegation B: Abuse of Authority – search, Exonerated**). Det. Shawn McLaughlin, Det. Francisco Allende, Det. Louis Gerlach, Det. Steven Orlando, Det. Theodore Peters, Det. Jorge Salazar, Det. Ralph Stallone, Det. Robert Sullivan, Sgt. Anthony McDonald, and Det. Kenneth Ayala all from the Emergency Services Squad entered the apartment with their guns pointed (**Allegation C: Force – Gun Pointed, Exonerated**). They were then followed by PO Mathew Giacalone and Det. Rudy Anzalone from the Intel Criminal Section and PO Casey Engelhardt, PO Cara Gambardella, PO Marina Fotey, PO Jimmy Ramirez, PO Vincent Reres, and PO Philip Sarnicola all from the 120th Precinct. PO Gambardella then patted down § 87(2)(b) body and allegedly looked into the front of her shorts and down her shirt (**Allegation D: Abuse of Authority – Strip Search, Unfounded**).

20 Body-Worn Camera (BWC) videos from all the officers on scene were received. BWC from PO Gambardella (Board Review 03), PO Giacalone (Board Review 02) are specifically noted in this report.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Rudy Anzalone entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse of Authority: Detective Rudy Anzalone searched § 87(2)(b) in Staten Island.

Allegation (C) Force: Officers pointed their guns at § 87(2)(b).

§ 87(2)(b) was interviewed over the phone on September 2, 2021 (Board Review 01). PO Giacalone was interviewed at the CCRB on February 18, 2022 (Board Review 06).

§ 87(2)(b) stated that on July 2, 2021, at approximately 3:23 a.m. at § 87(2)(b) in Staten Island, multiple officers entered her apartment, pushed her bedroom door open and pointed their guns and flashlights in her face. Officers then looked through the apartment including under the bed, and in cabinets.

A search warrant requested by Det. Anzalone and authorized by Hon. § 87(2)(b) on § 87(2)(b), permitted any police officer of the NYPD to search and seize all firearms and evidence of firearm possession from § 87(2)(b), in Staten Island. Officers were permitted to enter the apartment day or night without prior notice (Board Review 04).

Article 690.50 of the Criminal Procedure Law permits officers who have obtained a valid search warrant to enter premises and conduct a full and thorough search for contraband with as much physical force, other than deadly physical force, as necessary to execute the warrant (Board Review 05) NY CLS CPL § 690.50.

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations A, Allegation B, and Allegation C** be closed as **Exonerated**.

Allegation (D) Abuse of Authority: Police Officer Cara Gambardella strip-searched § 87(2)(b)

§ 87(2)(b) stated PO Gambardella patted down her body and then briefly looked into her shorts and shirt while she was not wearing any undergarments.

PO Gambardella's BWC (Board Review 03) and PO Giacalone's BWC (Board Review 02) capture PO Gambardella patting down § 87(2)(b)'s body. The interaction is captured from minute mark 00:00 to 00:18 on PO Gambardella's BWC and between minute mark 05:40 to 06:30 of PO Giacalone's BWC. PO Gambardella pats § 87(2)(b)'s arms, legs, torso, and hair. § 87(2)(b) is wearing a tank top and shorts with no visible pockets. The footage of each of the officers' BWC shows separate angles of the interaction that when viewed simultaneously show a complete depiction of the actions taken by PO Gambardella. Between minute mark 00:00 and 00:16 of PO Gambardella's BWC, time stamped 03:32:41 to 03:32:58 PO Gambardella uses her right arm to pat the front of § 87(2)(b)'s stomach while her left hand is out of view.

PO Giacalone's BWC begins before PO Gambardella entered the room. From minute mark 05:40 (time stamp 03:32:22) to 05:56 (time stamp 03:32:38) PO Gambardella enters § 87(2)(b)'s room and helps her off the bed. The time PO Gambardella begins to pat § 87(2)(b)'s body is captured on PO Giacalone's BWC from minute mark 05:59 (time stamp 03:32:41) to 06:23 (time stamp 03:33:05). PO Gambardella's right hand is seen patting § 87(2)(b)'s back before she moves her hand back to the front of § 87(2)(b)'s body. At minute mark 00:24 (time stamp 03:33:05) of PO Gambardella's BWC she uses her right hand, to pat across § 87(2)(b)'s chest. At minute mark 00:29, PO Gambardella takes off § 87(2)(b)'s sleeping bonnet and pats her hair. At minute mark 00:47, PO Gambardella helps § 87(2)(b) onto her bed without making additional contact with her body. At minute mark 01:22 PO Gambardella leaves the room. At no point does PO Gambardella look inside or reach into § 87(2)(b)'s shirt or shorts.

PO Giacalone did not recall a strip search and did not recall an officer looking into § 87(2)(b)'s undergarments.

§ 87(2)(g) It is therefore recommended that **Allegation E** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 07).

PO Gambardella has been a member-of-service for 14 years and this is the first CCRB complaint to which she has been a subject.

Det. Anzalone has been a member of service for 14 years and has been a subject in 17 CCRB complaints and 46 allegations, of which two were substantiated.:

- 201702888 involved substantiated allegations of Abuse of Authority- refusal to show search warrant, against Det. Anzalone. The Board recommended Command Discipline B and the NYPD imposed Formalized Training.

